

HEADNOTE

“1. In the absence of any specific fact that is contested at the time of submitting the request, it is not in line with the outlined principles relevant for assessing a R. 190 RoP Request to conditionally ask for an overall documentation. R. 190 RoP is not for investigation of unknown facts but to produce evidence for substantiated, relevant and contested facts.

2. Although neither the Enforcement Directive nor the UPCA nor the RoP set out a timeframe for submitting a R. 190 RoP Request that would make it (in)admissible, and there is also no procedural framework indicating that such request can only be introduced once all parties' arguments have been finalised, it is clear that a R. 190 RoP Request could be dismissed if the Court deems it to be too early in the proceedings, based on the circumstances of the case.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 808 512 B1

Robot localizing method, robot, and
storage medium

KEYWORDS

application to produce evidence (r. 190 rop)

Rule 190 Order to produce evidence

SUMMARY

The Local Division in Düsseldorf ruled on a counterclaim for revocation. The patents at issue relate to a robot localizing method, robot, and storage medium. According to the headnotes of the decision, requests for evidence under Rule 190 of the Rules of Procedure must target specific facts that are actively disputed rather than serve as a tool for general fact-finding about unknown matters. The Court may reject a Rule 190 request as premature if submitted too early in proceedings, even though the Rules of Procedure and the UPCA do not establish a formal deadline for such requests, based on the circumstances of each case.